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2026.PHHC.086645



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-32932-2026
Decided On: 04.06.2026**

ANKIT**....PETITIONER(S)****VERSUS****STATE OF HARYANA****....RESPONDENT(S)****CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL****Present:** Mr. Vijay Deep Rathee, Advocate for the petitioner**SANDEEP MOUDGIL, J. (ORAL)****1. Prayer**

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in connection with FIR No. 0212 dated 25.04.2026 (P-1) under Sections 318(4), 336(3), 338, 340 and 61 of BNS, 2023 (corresponding Sections 420, 468, 467, 471 and 120-B IPC) registered at Police Station Chandni Bagh, District Panipat.

2. Contention**On behalf of the petitioner**

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the petitioner was merely a co-borrower in the loan account of M/s Hungry Point and was neither the mastermind nor the principal beneficiary of the alleged transaction. The primary allegations pertain to certain ex-employees and the Direct Selling

Agent (DSA), who are stated to have facilitated the submission of forged documents. It is further submitted that no specific overt act of forgery has been attributed to the petitioner, except his association with the loan documentation as a co-borrower. Learned counsel argues that the gravamen of the allegations relates to financial loss allegedly caused by forgery and cheating. However, the said loss stands substantially mitigated, as the NBFC/complainant has accepted the settlement amount and has thereafter issued a formal No Objection Certificate (NOC), acknowledging the closure of the loan account. The petitioner also undertakes to join the investigation as and when directed by this Court.

Notice of motion.

On behalf of the State

On the asking of the Court, Ms. Ruchi Sekhri, Addl. AG Haryana, accepts notice on behalf of the respondent–State and has vehemently opposed the prayer made by the learned counsel for the petitioner on the ground that the custodial interrogation of the petitioner is essential for the recovery of the forged documents as well as the equipment allegedly used in their preparation, and for ascertaining the involvement of other accused persons in the commission of the offence.

Learned State counsel further submitted that another criminal case, namely FIR No. 456 of 2015, registered under the offence of attempt to murder, is stated to be pending against the petitioner at Police Station City Gohana, District Sonapat. In view of the aforesaid circumstances, it is contended that the petitioner is not entitled to the concession of anticipatory bail.

4. Analysis

In the present case, the petitioner is stated to be only a guarantor to the loan transaction. At this stage, no specific allegation has been levelled against him regarding the preparation, fabrication, or use of the alleged forged documents. It is also not disputed that the financial liability arising out of the loan transaction stands settled, as is evident from the No Objection Certificate dated 30.04.2026 (Annexure P-3) issued by the complainant. Although such settlement does not ipso facto result in compounding of the offences alleged or quashing of the FIR, the same constitutes a relevant circumstance for consideration of the present petition.

Furthermore, the petitioner, in para 12 of the petition, has categorically undertaken to join the investigation and extend full cooperation to the investigating agency. As regards the pendency of another criminal case against the petitioner, the same, in the absence of any material indicating misuse of liberty, non-cooperation with the investigation, or likelihood of absconding, cannot by itself be a ground to deny the concession of anticipatory bail.

5. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

- (i) a condition that the person shall make himself available for interrogation by a police officer as and when required;*
- (ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;*
- (iii) a condition that the person shall not leave India without the previous permission of the Court;*
- (iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.'*

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

04.06.2026
NainaRajput

<i>Whether speaking/reasoned</i>	<i>:Yes/No</i>
<i>Whether reportable</i>	<i>:Yes/No</i>